

1 Christopher D. Mandarich SB 220693

2 Teona Pipia SB 343337

3 Hayk Stambultsyan SB 320973

4 Martin Weingarten SB 201906

5 MANDARICH LAW GROUP, LLP

6 P.O. Box 109032 Chicago, IL 60610

7 Phone: 877.285.4918

8 Facsimile: 818.888.1260

9 Mandarich Law Group, LLP California Debt Collector License Number 10795-99.

10 Attorneys for Plaintiff: LVNV Funding LLC

Electronically FILED by

Superior Court of California,

County of Los Angeles

1/04/2024 3:50 PM

David W. Slayton,

Executive Officer/Clerk of Court,

By E. Flores, Deputy Clerk

11 **SUPERIOR COURT OF THE STATE OF CALIFORNIA**
12 **IN AND FOR THE COUNTY OF LOS ANGELES - LIMITED**

13 LVNV Funding LLC,
14 Plaintiff,

15 vs.

16 Peter Stincer, an individual;

17 and DOES 1 through 10 inclusive.
18 Defendant.

Case No.

24CHLC00255

COMPLAINT FOR:

1. ACCOUNT STATED

2. OPEN BOOK ACCOUNT

DEMAND: \$6,296.35

19 Plaintiff alleges:

20 **FACTS COMMON TO ALL CAUSES OF ACTION**

21 1.Plaintiff is and at all times herein mentioned, LVNV Funding LLC, and successor in
22 interest to original creditor, Citibank, N.A..

23 2.Plaintiff is a debt buyer, and is the sole owner of the debt at issue. Plaintiff's California
24 Debt Collector License Number 10888-04.

25 3.The charge-off creditor at the time of charge-off is Citibank, N.A., 5800 South Corporate
26 Place Sioux Falls, SD 57108, and the account number associated with this debt is
27 XXXXXXXXXXXXX1191.

28 4.The subject credit account has been purchased by the following entities after charge-off:
Resurgent Acquisitions LLC P.O. Box 10466 Greenville, SC 29603. The subject credit account
was transferred by Resurgent Acquisitions LLC to Plaintiff LVNV Funding LLC, who maintains
an address at C/O Resurgent Capital Services LP 55 Beattie Place, Suite 110, Greenville SC 29601.

5.Plaintiff is informed and believes that Defendant are individuals who currently reside

1 within the jurisdictional boundaries of the above entitled Court. Therefore, this Court is the proper
2 Court for trial of this action.

3 6.The name and last known address of the debtor as they appeared in the charge-off
4 creditor's records prior to the sale of the debt is Peter Stincer, 12814 NEWTON ST , SYLMAR,
5 CA 91342-0000.

6 7.Plaintiff is unaware of the true names or capacities, whether individual, corporate,
7 associate or otherwise of the Defendant sued herein as DOES 1 through 10 inclusive, and therefore,
8 sued the Defendant by such fictitious names. Plaintiff will amend this Complaint to show their true
9 names and capacities once ascertained.

10 8.Plaintiff believes and at all times mentioned herein, each of the Defendant was, and is,
11 the agent, servant and employee, employer of each of the other Defendant, and also acted in the
12 capacity of and as agent of the other Defendant. Plaintiff also believes that the individual
13 Defendant, and each of them, are jointly and severally liable that the actions described herein
14 were taken as actions for the benefit of the Defendant's separate and/or community property.

15 9.Plaintiff believes that, for value received, Defendant and each of them, executed and
16 delivered a credit card application to the original creditor, Citibank, N.A. or made such application
17 over the telephone or Internet. Pursuant to the aforementioned application, Citibank, N.A. provided
18 Defendant with a credit account, and granted use privileges on the same, account number
19 XXXXXXXXXXXX1191 (hereinafter "Account").

20 10.Prior to the commencement of this action, the Account was assigned for value to the
21 Plaintiff and Plaintiff is its current holder.

22 11.Defendant agreed to repay Citibank, N.A. and any successors in interest, for any charges
23 on the Account including, but not limited to, charges for purchase of goods and service and/or cash
24 advances and balance.

25 12.Defendant used the Account to make purchases and/or to take cash advances and/or to
26 make balance transfers. Each time the Defendant used the Account to purchase goods and services
27
28

1 and/or take cash advances and/or make balance transfers, Defendant reaffirmed their agreement to
2 repay Citibank, N.A. and its successors in interest for the amount of the purchase and/or cash
3 advances and/or balance transfers.

4 13.Monthly statements were sent to Defendant which itemized all payments made and
5 charges due on the Account.

6 14.The date of last payment on the subject account was on January 29, 2020.

7 15.Within the last four years, the Defendant failed to make payments as agreed on the
8 Account. Defendant has failed, refused and neglected to pay amounts due on the Account.

9 16.The debt balance at charge-off was \$6,296.35, and upon information and belief there is
10 \$0.00 in post charge off fees and \$0.00 in post charge off interest.

11 17.Subsequent to charge-off, and after applying any and all applicable payments and
12 credits, the Defendant owes Plaintiff \$6,296.35.

13 18.Although demand has been made upon said Defendant to pay said amount, no part has
14 been paid, and it is now due and owing.

15 19.Upon information and belief, Citibank, N.A. and successors in interest including
16 Plaintiff have duly performed all promises, conditions and agreements herein.

17 20.Plaintiff has complied with California Civil Code Section 1788.52.

18 21.Plaintiff has attached hereto as Exhibit A and incorporated herein by reference a copy
19 of Billing Statement provided to the Defendant while the account was active, demonstrating that
20 the debt was incurred by the Defendant.

21 22.Plaintiff has attached hereto as Exhibit B and incorporated herein by reference a copy
22 of the Final Billing Statement and/or Transaction History.

23 23.Upon opening the Account with Citibank, N.A., the Defendant(s) agree to reimburse
24 Citibank, N.A., and hence Plaintiff as successor in interest for the costs related to the collection of
25 amounts owing on the Account. Plaintiff has been required to retain Mandarich Law Group, LLP
26
27
28

1 to pursue collection of the amount due hereunder.

2
3 **FIRST CAUSE OF ACTION**

4 **(Account Stated)**

5 24.Plaintiff refers to and incorporates paragraphs 1 through 23.

6 25.Within the past 4 years, an account was stated in writing in which it was agreed that
7 Defendant were indebted in the amount previously referenced herein. Although demand has been
8 made upon Defendant, said amount of \$6,296.35 has not been paid, and it is now due, owing and
9 unpaid from Defendant to Plaintiff, as successor in interest.
10

11
12 **SECOND CAUSE OF ACTION**

13 **(Open Book Account)**

14 26.Plaintiff refers to and incorporates paragraphs 1 through 25.

15 27.Within the past 4 years, Defendant and each of them became indebted in the amount of
16 the previously mentioned herein for a balance due on a book account for goods sold and delivered
17 and/or services rendered by Citibank, N.A.. Although demand has been made upon Defendant,
18 said amount of \$6,296.35 has not been paid, and it is now due, owing and unpaid including
19 attorney's fees from Defendant to Plaintiff as successor in interest.
20

1
2 WHEREFORE, Plaintiff prays for judgment against the Defendant as follows:

- 3
4 1. For the damages and money in the sum of \$6,296.35,
5 2. For reasonable attorneys fees pursuant to statute;
6 3. For costs of suit incurred; and
7 4. For such other and further relief as the Court deems just and proper.
8
9 5. Plaintiff remits all damages in excess of the jurisdictional amount of this Court.

10
11 Dated: 12/22/2023

By: **MANDARICH LAW GROUP, LLP**

12
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14 

15 [X] Teona Pipia, Esq.
16 *Attorneys for Plaintiff*
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EXHIBIT A

PETER STINCER

Member Since 2019 Account number ending in: 1191

Billing Period: 12/17/19-01/15/20

www.citicards.com**Customer Service 1-888-766-CITI(2484)**

TTY-hearing-impaired services only 1-800-325-2865

BOX 6500 SIOUX FALLS, SD 57117

JANUARY STATEMENT

Minimum payment due:	\$40.00
New balance as of 01/15/20:	\$4,180.25
Payment due date:	02/13/20

To avoid paying interest on purchases, you should pay \$4,180.25 by the due date.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$39 and your APRs may be increased up to the Penalty APR of 29.99%.

For information about credit counseling services, call 1-877-337-8187.

Account Summary

Previous balance	\$0.00
Payments	-\$0.00
Credits	-\$0.00
Purchases	+\$4,180.25
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$0.00

New balance \$4,180.25**Credit Limit**

Revolving Credit limit	\$4,500
Includes \$1,400 cash advance limit	
Available Revolving credit	\$319
Includes \$319 available for cash advances	


AMERICAN AIRLINES
AADVANTAGE® MILESAAdvantage® Miles
Earned this period:**55,052**» See page 3 for more information
about your rewardsPay your bill from virtually anywhere
with the Citi Mobile® App and Citi® OnlineTo download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com**Minimum payment due \$40.00****New balance \$4,180.25****Payment due date 02/13/20****Amount enclosed:**

Account number ending in 1191

000000 WE 00 A 0

PETER STINCER
12814 NEWTON ST
SYLMAR CA 91342-4923CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

PETER STINCER

Account Summary

Trans. date	Post date	Description	Amount
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Standard Purchases

01/04	01/04	WEST COAST PARKING CITY OF INDUS CA	\$25.00
01/04	01/04	A J FAMILY ENTERTAINME SHERMAN OAKS CA	\$46.00
01/04	01/04	EXXONMOBIL 97646145 CANOGA PARK CA	\$49.99
01/04	01/04	HOLLYWOOD HOOKAH LOS ANGELES CA	\$54.34
01/05	01/05	SQ *SQ *STAR HOOKA Hollywood CA	\$23.00
01/05	01/05	VENMO 8558124430 NY	\$206.00
01/05	01/05	VENMO 8558124430 NY	\$494.40
01/05	01/05	B&H-WILL ROGERS 3 3103059503 CA	\$9.00
01/06	01/06	SQ *SQ *JOEY WOODLAND Woodland Hill CA	\$128.89
01/06	01/06	COUNTY OF LA BEACHES & MARINA DEL RE CA	\$6.00
01/06	01/06	VANOWEN SMOKE HOUSE LOS ANGELES CA	\$10.95
01/06	01/06	HOLLYWOOD HOOKAH LOS ANGELES CA	\$200.00
01/07	01/07	24 HOUR FITNESS - 929 WOODLAND HILL CA	\$4.70
01/07	01/07	24 HOUR FITNESS - 929 WOODLAND HILL CA	\$5.46
01/07	01/07	THE AUTO SPA @ THE GRO LOS ANGELES CA	\$30.00
01/07	01/07	ZARA USA 3985 LOS ANGELES CA	\$39.41
01/07	01/07	NORDSTROM #0349 LOS ANGELES CA	\$131.40
01/07	01/07	Nike The Grove 246 Los Angeles CA	\$443.48
01/07	01/07	LAZ PARKING 670154 LOS ANGELES CA	\$10.00
01/07	01/07	JALAN JALAN IMPORTS LL TOPANGA CA	\$25.19
01/08	01/08	CHEVRON 0098879 SYLMAR CA	\$60.19
01/08	01/08	STARBUCKS STORE 05924 PALMDALE CA	\$4.95
01/08	01/08	CAFE O RESTAURANT BURBANK CA	\$53.86
01/09	01/09	VALLEY SUGAR NAIL 5 WOODLAND HILL CA	\$25.00
01/09	01/09	THE SPOT RESTAURANT ENCINO CA	\$55.39
01/09	01/09	SQ *SQ *BRIEL RESEDA CA	\$27.38
01/09	01/09	SQ *SQ *BRAID ME U CANOGA PARK CA	\$80.00
01/09	01/09	GNC RESEDA CA	\$90.32
01/09	01/09	SALLY BEAUTY #0892 TARZANA CA	\$136.17
01/10	01/10	APPLE.COM/BILL 866-712-7753 CA	\$2.99
01/10	01/10	APPLE.COM/BILL 866-712-7753 CA	\$3.99
01/10	01/10	SUBWAY 00476598 CANOGA PARK CA	\$12.57
01/10	01/10	CHEVRON 0098879 SYLMAR CA	\$63.55
01/10	01/10	VENMO 8558124430 NY	\$66.95
01/10	01/10	BED BATH & BEYOND #08 WOODLAND HILL CA	\$319.99
01/11	01/11	PARKRECEIPTS.COM -V FRISCO TX	\$15.00
01/11	01/11	APPLE.COM/BILL 866-712-7753 CA	\$15.99
01/11	01/11	LOS TOROS MEXICAN REST CHATSWORTH CA	\$33.74
01/11	01/11	THE SPOT RESTAURANT ENCINO CA	\$54.75
01/11	01/11	SQ *SQ *JOEY WOODLAND Woodland Hill CA	\$76.88
01/11	01/11	APPLE.COM/BILL 866-712-7753 CA	\$89.99
01/11	01/11	PRO IMAGE SPORTS #620 CANOGA PARK CA	\$148.88
01/12	01/12	SPECTRUM 855-707-7328 CA	\$798.51

Fees charged

Date	Description	Amount
01/15	MEMBERSHIP FEE JAN 20-DEC 20	\$0.00

Total fees charged in this billing period \$0.00**AADVANTAGE®
MILES EARNED
THIS PERIOD:****55,052**

Purchase	4,180
Bonus	50,872

Accumulated This Period 55,052

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much more

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PETER STINCER

Interest chargedTotal interest charged in this billing period **\$0.00****2020 totals year-to-date**

Total fees charged in 2020	\$0.00
Total interest charged in 2020	\$0.00

Billing Disputes

DISPUTED ITEM		
01/06	SQ *SQ *JOEY WOODLAND Woodland Hill CA	\$128.89
DISPUTED ITEM		
01/07	24 HOUR FITNESS - 929 WOODLAND HILL CA	\$4.70
DISPUTED ITEM		
01/07	24 HOUR FITNESS - 929 WOODLAND HILL CA	\$5.46
DISPUTED ITEM		
01/06	COUNTY OF LA BEACHES & MARINA DEL RE CA	\$6.00
DISPUTED ITEM		
01/06	VANOWEN SMOKE HOUSE LOS ANGELES CA	\$10.95
DISPUTED ITEM		
01/07	THE AUTO SPA @ THE GRO LOS ANGELES CA	\$30.00
DISPUTED ITEM		
01/07	ZARA USA 3985 LOS ANGELES CA	\$39.41
DISPUTED ITEM		
01/07	NORDSTROM #0349 LOS ANGELES CA	\$131.40
DISPUTED ITEM		
01/06	HOLLYWOOD HOOKAH LOS ANGELES CA	\$200.00
DISPUTED ITEM		
01/07	Nike The Grove 246 Los Angeles CA	\$443.48
DISPUTED ITEM		
01/07	LAZ PARKING 670154 LOS ANGELES CA	\$10.00
DISPUTED ITEM		
01/07	JALAN JALAN IMPORTS LL TOPANGA CA	\$25.19
DISPUTED ITEM		
01/08	CHEVRON 0098879 SYLMAR CA	\$60.19
DISPUTED ITEM		
01/08	STARBUCKS STORE 05924 PALMDALE CA	\$4.95
DISPUTED ITEM		
01/09	SQ *SQ *BRIEL RESEDA CA	\$27.38
DISPUTED ITEM		
01/08	CAFE O RESTAURANT BURBANK CA	\$53.86
DISPUTED ITEM		
01/09	SQ *SQ *BRAID ME U CANOGA PARK CA	\$80.00
DISPUTED ITEM		
01/09	GNC RESEDA CA	\$90.32
DISPUTED ITEM		
01/09	SALLY BEAUTY #0892 TARZANA CA	\$136.17

Interest charge calculationDays in billing cycle: **30**Your **Annual Percentage Rate (APR)** is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	25.49% (V)	\$0.00 (D)	\$0.00

PETER STINCER

Interest charge calculation, cont'd			
Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
ADVANCES			
Standard Adv	26.74% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Please note that if we received your pay by phone or online payment between 5 p.m. ET and midnight ET on the last day of your billing period, your payment will not be reflected until your next statement.

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EXHIBIT B

PETER STINCER

Member Since 2019 Account number ending in: 1191
Billing Period: **07/16/20-08/17/20**

www.citicards.com

Customer Service 1-800-846-8444

TTY-hearing-impaired services only 1-800-325-2865
BOX 6500 SIOUX FALLS, SD 57117

AUGUST STATEMENT

Minimum payment due: **\$6,296.35**
New balance as of 08/17/20: **\$6,296.35**
Payment due date: **08/17/20**

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$39 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	1 month(s)	\$6,296

For information about credit counseling services, call 1-877-337-8188.

Account Summary

Previous balance \$6,161.29
Payments -\$0.00
Credits -\$0.00
Purchases +\$0.00
Cash advances +\$0.00
Fees +\$0.00
Interest +\$135.06

New balance **\$6,296.35**

Credit Limit

Revolving Credit limit \$4,500
Includes \$1,400 cash advance limit



Pay online www.citicards.com



Pay by phone 1-800-846-8444



Pay by mail Use this coupon

- Enclose a valid check or money order payable to CITI CARDS. No cash or foreign currency.
- Write the last four digits of your account number on your check.

Minimum payment due **\$6,296.35**
New balance **\$6,296.35**
Payment due date **08/17/20**

Amount enclosed:

Account number ending in 1191

000000 WE 34 A 0

PETER STINCER
12814 NEWTON ST
SYLMAR CA 91342

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

PETER STINCER

Account Summary

Trans. date	Post date	Description	Amount
.....			

Fees charged

Total fees charged in this billing period	\$0.00
--	---------------

Interest charged

Date	Description	Amount
08/17	INTEREST CHARGED TO STANDARD PURCH	\$135.06

Total interest charged in this billing period	\$135.06
--	-----------------

2020 totals year-to-date

Total fees charged in 2020	\$142.00
Total interest charged in 2020	\$706.84

Interest charge calculationDays in billing cycle: **33**Your **Annual Percentage Rate (APR)** is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	23.99% (V)	\$6,226.53 (D)	\$135.06
ADVANCES			
Standard Adv	25.24% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Minimum Payment Due includes past due amounts. Your account may be with a collection vendor and when you call our number, you may be referred to the vendor. You may reach us at the toll-free number shown above
Monday-Thursday 8am to 6 pm or Friday 8am to 5pm, Central Time.
1-800-846-8444. TTY 1-855-371-0353.

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